Title 25—INDIANS

Chapter I—Bureau of Indian Affairs, Department of the Interior

PART 221—OPERATION AND MAINTENANCE CHARGES

Salt River Indian Irrigation Project, Arizona

On page 388 of the FEDERAL REGISTER of January 16, 1960, there was published a notice and text of a proposed amendment to § 221.120 and addition of § 221.123 to Title 25—Indians, of the Code of Federal Regulations. The purpose of this amendment and addition is to increase the basic operation and maintenance charge from $5.50 to $7.35 per acre per annum and to provide for the establishment of a charge of $8.00 per acre-foot for excess water on the Salt River Indian Irrigation Project, Arizona.

Interested persons were given 30 days within which to submit written comments, suggestions or objections with respect to the proposed amendment.

One communication was received within the specified period. It was given careful consideration but was not accepted because the purpose of the amendment and addition would be defeated thereby.

The proposed amendment and addition to the regulations are hereby adopted as set forth below.

1. Section 221.120 is amended to read as follows:

§ 221.120 Basic assessment.

The basic operation and maintenance assessment against the lands under the Salt River Irrigation Project in Arizona to which water can be delivered through the irrigation project works is hereby fixed at $7.35 per acre for the year 1960 and subsequent years until further notice. The payment of the per acre assessment shall entitle the land for which payment is made to receive three acre-feet of water per annum or such lesser amount as represents the proportionate share of the available supply of water.

2. A new § 221.123 is added to read as follows:

§ 221.123 Excess water.

Additional water in excess of the basic apportionment of three acre-feet per acre per annum may be purchased if and when the water is available at the rate of $8.00 per acre-foot or fraction thereof, measured at the farm delivery point. Payment shall be made in advance of delivery.

FRED A. SEATON,
Secretary of the Interior.

MARCH 24, 1960.

[F.R. Doc. 60-2914; Filed, Mar. 30, 1960; 8:47 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 2072]

[1687375]

WASHINGTON

Partially Revoking Executive Order No. 1032 of February 25, 1909, Which Withdrew Certain Lands for Protection of Native Birds

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 1032 of February 25, 1909, so far as it reserved parts of T. 35 N., Rs. 24 and 25 E., Willamette Meridian, Washington, comprising the Conconully Reservation, as segregated by the broken lines upon diagrams which were attached to the order, for use of the Department of Agriculture as a preserve and breeding ground for native birds, the name of which was changed to Conconully National Wildlife Refuge by Proclamation No. 2416 of July 25, 1940, is hereby revoked.

All the lands, except approximately 70 acres, are under first form reclamation withdrawal or have been patented without a reservation of minerals to the United States.

Lot 6, sec. 1, T. 35 N., R. 24 E., and lots 4 and 11, sec. 7, T. 35 N., R. 25 E., are vacant public domain.

The 70 acres of lands released from withdrawal by this order shall not become subject to the initiation of any rights or to any disposition under the public land laws until it is so provided by an order of classification to be issued by an authorized officer opening the lands to application under the Small Tract Act of June 1, 1938 (52 Stat. 609; 43 U.S.C. 682a) as amended, but with a six-month preference right period for filing application by the State of Washington to select the lands in accordance with and subject to the provisions of subsection (c) of section 2 of the Act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 851-2), and the regulations in 43 CFR, all applications to be made subject to any from persons having prior existing valid settlement rights, preference rights conferred by existing law, and equitable claims subject to allowance and confirmation.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Spokane, Washington.

ROGER ERNST,
Assistant Secretary of the Interior.

MARCH 24, 1960.

[F.R. Doc. 60-2921; Filed, Mar. 30, 1960; 8:47 a.m.]

Title 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[FCC 60-280]

PART 1—PRACTICE AND PROCEDURE

Miscellaneous Amendments

1. On April 8, 1959, the Commission adopted changes in its rules to implement the new "cut-off" procedure for the processing of standard broadcast applications. Section 1.354(h) of the rules was amended to read, in part, as follows:

(1) A new file number will be assigned to an application for a new station or for major changes in the facilities of authorized stations when it is amended to change its engineering proposal other than with respect to the type of equipment specified.

2. The adoption of the rule became necessary because a multiplicity of amendments to applications required our reprocessing the applications and precluded our taking action to grant or designate them for hearing. As pointed out in our said Report and Order adopting the change, "it appears that for several months the Commission's staff has been engaged in the constant reprocessing of the same 400 or so applications, which either have been taken from the top of the processing line or have been grouped for study with the older applications because of conflicts, with little or no hope that the various groups of conflicting applications may be designated for hearing so long as amendments continue to be filed." It was pointed out further that during one 30-day period more than 300 applications were at least partially processed by the engineering staff to determine the effect of amendments or new filings on interference conditions and that during the same period only 33 applications were placed on the Commission's agenda. More significantly, although not a single application was removed from the top of the processing line, the number of applications under study increased because of the necessity of grouping additional applications with those already under study. A major problem also then facing the Commission was that of concluding study on several large groups of conflicting applications involving, for example, 28, 31, 33, 44 and 59 each.

3. Since the amendment of § 1.354 (h)(1), the Commission has been able to conclude study on and dispose of, insofar as the processing line is concerned, more than 550 applications. In particular, the problem of moving from the processing line the large groups of applications has been reduced greatly, and it appears that few, if any, such group obtain on which our study has not been virtually completed. Thus, the restrictions in § 1.354(h)(1) on amendments without the assignment of new file numbers can now be changed to permit certain types of amendments without